भारत सरकार / Government of India
वित्त मंत्रालय / Ministry of Finance
कार्यालय / Office of
आयुक्त सीमा शुल्क :सामान्य
Commissioner of Customs: General
Air Cargo Complex, CSM International
Airport, Mumbai-400 099.

सत्यमेव जयते

Email : rti.gen.acc@gmail.com

RTI MATTER

Date: 12.10.2022

F. No. S/RTI/Gen-42/2022-23/ACC (Gen)
PIN No. 20221079OD0000811727

To,
Shri Akash Kumar,
Drawback Recovery Cell, 4th floor,
Jawaharlal Nehru Custom House,
Nhava Sheva, Raigad – 400707.

Gentleman,

Sub: Information under the RTI Act, 2005 - reg.

Please refer to your application Regn No CCUM3/R/E/22/00098 dated 20.09.22 received in this section on 20.09.2022 through online RTI portal from CCO, Mumbai Zone-III. The application was forwarded to the concerned section for the requisite information.

With regard to the information sought through the above referred RTI application, the reply received from the concerned section is as under:-

"As per Section 2(f) of the RTI Act, 2005 word "information" is defined as –

"any material in any form, including records, documents, memos, e-mails, opinions, advices, press releases, circulars, orders logbooks, contracts, reports, papers, samples, models, data material held in any electronic form and information relating to any private body which can be accessed by a public authority under any other law for the time being in force."

Further, it is informed that in the matter of Shri Aakash Aggarwal Vs CPIO Debts Recovery, the Hon'ble CIC in its judgement F.No. CIC/AT/A/2006/00446 dated 18.12.2006 has held that

"8. The AA and the CPIO have correctly inferred the information solicited by the appellant amounted to eliciting the opinion and advice of the Debt Recovery Tribunal, Delhi. It is not information as defined in the RTI Act".

p.t.o.

In view of the above, the information sought by you does not fall under the purview of 'information' under section 2(f) of the Right to Information Act, 2005 and hence merits rejection.

If you are not satisfied with the reply, you may prefer an appeal within 30 days before the First Appellate Authority whose contact details are given below-

Name and Address of Appellate Authority (G)

Shri V.I. Singh,
First Appellate Authority,
Jt. Commissioner of Customs (RTI/General),
1st floor, ACC SAHAR (Andheri East),
Mumbai-400099.

The RTI application is accordingly disposed of.

121022

(Vijayan V.K.)
Central Public Information Officer
सहायक आयुक्त सीमाशुल्क आयुक्त / Asstt. Commissioner of Customs/CPIO(G)
सू. का. अधि. कक्ष (सामान्य) / RTI Cell (General)